

		given to the trustee: power to invest; power to loan to, buy from or sell to the Trust; power to borrow money and encumber Trust assets; and power to administer the Trust's real estate. The power to fund litigation is not included as a specific power. According to the preliminary paragraph of Article VI, the specific powers set forth are granted in addition to any powers conferred by law. Respondent seems to suggest Probate Code section 16004.5 gives him the power to maintain a litigation reserve. However, the reserve authorized by section 16004.5(b)(a) is for "taxes, debts, trustee and accounting fees, and costs and expenses of administration" not for litigation. Probate Code section 16247 empowers a trustee to hire attorneys to "advise or assist the trustee in the performance of administrative duties." Litigation is not an administrative power. In the absence of a trust provision specifically to the contrary, a trustee is not entitled to utilize trust funds to defend litigation when, as here, the dispute is "over who will enjoy the benefits and who will control the trust." (<i>Zahnleuter v. Mueller</i> (2023) 88 Cal.App.5th 474, 484.) Because the Trust does not grant Respondent the power to use Trust funds for this litigation and pursuant to Probate Code section 17206, the motion is GRANTED. Petitioner is directed to give notice.
2	Mills – Conservatorship; 30-2024-01388539	Motion for Attorney Fees Petitioner Zachary Tyler Mills's unopposed Motion for Payment of Family Law Attorney's Fees and Costs Pursuant to Probate Code § 2440(a)(4) is GRANTED in the amount of \$15,000.
3	Hernandez – Trust; 30-2022-01266339	Motion for Attorney Fees